

BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADV. N.N.P.
SARDESAI AT PANAJI-GOA.

IN THE MATTER OF:
VIKRAM SHAI

V/s.

RIVA TRINDADE & 3 Ors.

...Claimant

...Respondent



APPLICATION UNDER SECTION 16 OF
THE ARBITRATION AND
CONCILIATION ACT, 1996.

MAY IT PLEASE THIS HON'BLE TRIBUNAL

The Respondent No. 2 herein states and submits as below:

1. Vide Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024, this Arbitral Tribunal was appointed to decide the dispute between the parties which arises out of the Agreement styled as Articles of Association, purportedly entered between Mr. Pascoal Trindade, the Claimant and the Respondent No. 4 herein.

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2. Pursuant to the Order dated 07.08.2024 passed in the Application for Appointment of Arbitrator No. 13/2024 and constitution of the present Arbitral Tribunal, the Claimant herein filed his Statement of Claim seeking, amongst others, the following reliefs:

- a. This Tribunal be pleased to pass a judgment, order and decree directing Respondent Nos. 1 to 3 to pay the Claimant the sum of Rs. 20,00,00,000/- towards losses incurred by the Claimant;*
- b. This Hon'ble Tribunal be pleased to pass a judgment, order and decree appointing a Valuer as decided by this Tribunal to determine the value of the said property and assess the losses incurred by the Claimant;*
- c. This Hon'ble Tribunal be pleased to pass a judgment, order and decree appointing a Court Commissioner to partition the property by metes and*

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bounds in terms of the agreed ratios found in the AOA and thereafter deduct the losses incurred by the Claimant from the capital account of the Respondent Nos. 1 to 3 and reduce the same accordingly and also adjust the profit/loss to the Claimant commensurately;



d. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing Respondent Nos. 1 to 3 to pay the Claimant the sum of Rs. 1,00,00,00,000/- towards damages, loss of opportunity to do business, loss of reputation, loss of mental peace and harassment, and towards future losses to be incurred by the Claimant.

9. 3. This Respondent has filed the Statement of Defense and raised questions qua jurisdiction and/or arbitrability of the disputes raised in the claim and in no manner waives her

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right to assail the arbitrability of the dispute or the jurisdiction of this Tribunal.

4. The Respondent made earnest efforts to resolve the dispute after filing the Statement of Defense, which did not fructify, and in such circumstances, the Respondent has moved the present application at the earliest opportunity.
5. The Respondent has taken out the present application in order to seek rejection of the claims raised by the Claimant on the grounds stated herein below. Essentially, the claims raised by the Claimant are non-arbitrable in nature and are hit by the existing substantive law.
6. The edifice of the claims raised by the Claimant is the purported vesting of entitlements, rights and title of the subject properties onto the Articles of Association dated 01.04.2013, and the purported claim that the subject property ceased to be the personal property of Late Pascoal

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Trindade in the face of the registered instruments which operate in rem.



The Claimant has arrayed the present Respondent in the present arbitral proceedings as she is one of the legal heirs of Late Pascoal Trindade. However, Late Pascoal Trindade and this Respondent were married under the regime of communion of assets. The Respondent, being a moiety holder, was co-owner in the subject property during the lifetime of Late Pascoal Trindade. The rights, entitlement, title, interest and/or possession of this Respondent were never the subject matter of the Articles of Association, nor were they contemplated therein. Hence, the dispute qua rights, entitlement, title, interest and/or possession as a moiety holder/co-owner cannot constitute the subject matter of this arbitration.

8. The Respondent herein was neither a party to the Articles of Association nor was she in any manner bound by such

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Articles sought to be enforced. Apart from the fact that the Articles of Association are neither registered nor stamped in accordance with law, they consequently cannot create, extinguish and/or encumber the exclusive title of this Respondent.

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9. A mere reading of the material relied upon by the Claimant itself would demonstrate that the Articles of Association and particularly the clauses qua entitlement, vesting and cessation of rights are neither enforceable against the Respondent nor binding upon her, particularly in the background of the existing law governing her ownership rights, entitlements, title and interest by virtue of the law of communion of assets.
10. Additionally, the Articles of Association dated 01.04.2013 do not convey, transfer or divest any rights, ownership and entitlement in the subject property to the Claimant or any other person.

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11. Consequently, in the absence of any crystallized rights in favour of the Claimant and particularly in the background of the fact that the Claimant seeks to claim/enforce purported rights of ownership, vesting and entitlement in the face of registered instruments, the present dispute is clearly non-arbitrable.

12. Evidently, the Claimant has in no manner assailed, challenged and/or sought any declaration qua the validity, efficacy and/or title by which the Respondent has acquired rights, title or interest in the subject properties. In the absence of any contemporaneous challenge to the rights, entitlement and title of the Respondent as a moiety holder and owner of the subject property, the present claims/proceedings are clearly not within the scope of the arbitral proceedings and are liable to be rejected.

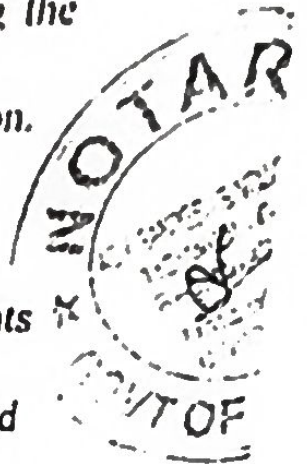
/s/ J

13. Without prejudice to the contention raised above, essentially the Claimant is claiming relief in rem in the garb of enforcement of the Articles of Association, rendering the present dispute non-arbitrable and vulnerable to rejection.

14. The Respondent reiterates that her independent entitlements and title over the subject property cannot be adjudicated upon by a private arbitral tribunal, particularly in the background of the fact that the reliefs being considered in the proceedings shall have effect in rem.

15. The Claimant is obviously conscious of the pendency of Special Civil Suit No. 52/2013/A pending before the Hon'ble Civil Judge, Senior Division at Panaji-Goa and has in fact relied on copies of the documents from the said proceedings. It is therefore deemed that the Claimant is conscious of the observations made in Order dated 13.10.2022 passed in Special Civil Suit No. 52/2013/A which reads thus:

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"5. In my opinion, said Articles of Association does not create any right, title in favour of the said Association based on the said document. In case there was such intention between the parties, then same ought to have been crystallized by entering into an agreement. Therefore, no right or title is crystallized in favour of the Association. Apart from the above, there is enormous and inordinate delay in preferring the present application i.e. nearly after a decade, for which no explanation has been given in the application."

A copy of the Order dated 13.10.2022 passed in Special Civil Suit No. 52/2013/A is annexed herewith and is marked as ANNEXURE A-I.

16. Considering the material on record, particularly the claims raised by the Claimant, the present dispute is not capable of being decided by means of arbitration.

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17. The present application has been made at the earliest opportunity and without any delay.
18. No prejudice shall be caused to any person or party in case the present application is taken and decided by the Tribunal at the present stage of the proceedings.
19. The Respondent shall suffer grave and irreparable loss in the event the present application is not considered and/or allowed in terms of law.
20. The Respondent shall suffer prejudice if the present application is disallowed.
21. Without prejudice, this Respondent states that the present application is filed without prejudice to any and all other grounds available to this Respondent in the facts and circumstances of the present case and under the relevant provisions of the laws qua maintainability and arbitrability

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of the dispute. The Respondent states that filing of the present application shall not preclude this Respondent from raising such other and further grounds available to her in law.



In view of the above, the claims filed by the Claimant are liable to be rejected.

Date: 14.03.2026

Place: Panaji, Goa

As
Respondent No. 2

AFFIDAVIT

I, MRS. ALBERTINA TRINDADE, wife of Mr. Pascoal Trindade, about 87 years in age, senior citizen, resident of 494, Dona Paula, Jetty, Panaji, North Goa, Goa, 403001, the Respondent No. 2 herein, do hereby on solemn affirmation state and submit as follows:



1. I say that I have filed the above Application under Section 16 of the Arbitration and Conciliation Act, 1996 before this Hon'ble Tribunal.

2. I say that the contents of the above Application at paragraph nos. 1pt, 2pt, 3pt, 4, 5pt, 6pt, 7pt, 8pt, 9pt, 10pt, 11pt, 12pt, 13pt, 14pt, 15pt, 16pt, 17, 18pt, 19pt, 20pt and 21pt are true and correct to my personal knowledge and belief and/or based on information derived from the records and/or inferences.

3. I say that the contents of the above Application at paragraph nos. 1pt, 2pt, 3pt, 5pt, 6pt, 7pt, 8pt, 9pt, 10pt, 11pt, 12pt,

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13pt, 14pt, 15pt, 16pt, 18pt, 19pt, 20pt and 21pt are in the nature of legal submissions which I believe to be true and correct.



4. I say that the contents of the present Affidavit at paragraph nos. 1, 2 and 3 above are true and correct to my personal knowledge and belief.

Solemnly affirmed at Panaji, Goa,
On this 14th day of March, 2026.

AS
DEPONENT



SOLEMNLY AFFIRMED AND VERIFIED
BY Mr. Mibunha Trindade
WHO IS IDENTIFIED BY SIGNATURE
BY Mr. Sandesh B. Volvoikar C.No. 0680 44551 4340
WHOM I KNOW
SERIAL NO. 506 DATED 13/03/2026

Sandesh B. Volvoikar
13/03/2026
SANDESH B. VOLVOIKAR
ADVOCATE & NOTARY AT TISWADI TALUKA
AT PANAJI
STATE OF GOA (INDIA)

Annexure A-1

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Order reserved on : 07.10.2022

Order pronounced on: 13.10.2022



CNR NO: GANG020025402013

Special Civil Suit No. 52/2013/A

ORDER

(BELOW EXHIBIT D-170)

(Delivered on this 13th day of the month of October of the year 2022)

1. Heard Ld. Advocate P. Rao for the defendant no. 20.
2. The plaintiff has given no objection to the this application. The defendant desires to implead M/s PVM

SCS No. 52/2013/A

Associates as a party in the present suit. It is contended by the defendant no.20 that vide Articles of Association dated 01.04.2013, the suit property was transferred by defendant no.1 to the above mentioned Association of Persons and thus the said Association is necessary party to the present suit. The defendant no.20 has relied on the copy of the Articles of Association.

3. I have perused the copy of the Articles of Association relied by the defendant no.20, it is a document executed before the Notary Public. It is not registered before the authorities.

4. Basically, said document was executed by the parties with the object of developing the properties mentioned therein. It also specifies the shares of the respective parties. It is further seen that the share of the defendant no.1 was decided based on his contribution by way of providing the properties for the development. The other two parties had contributed in terms of money.

5. In my opinion, said Articles of Association does not create any right, title in favour of the said Association based on the said document. In case there was such intention between the

parties, then same ought to have been crystallized by entering into an agreement. Therefore, no right or title is crystallized in favour of the Association. Apart from the above, there is enormous and inordinate delay in preferring the present application i.e. nearly after a decade, for which no explanation has been given in the application.

6. Be it as it may, we must not lose the sight of the fact that the plaintiff is a dominus-litus and therefore, if at all any such application has been filed, the same should have been preferred by the plaintiff. It is further to be appreciated that the members of the said Article of Association have not approached this Court and on the contrary, the defendant no. 20 desires to implead them without showing any justification for doing the same.

7. It appears from the conduct of the parties that they wish to protract the present proceedings by resorting to filing unmeritorious applications, till the Government accords them permission to settle the matter. Hence, the cost has to be imposed on the defendant no. 20.

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S. In the backdrop of the above discussion, I pass following:

ORDER

The application is dismissed with cost of Rs. 2,000/- to be paid to the District Legal Services Authority as condition precedent.

Panaji,

Dated: 13/10/2022

Mp/-

(Ram Subrai Prabhu Dessai)
Senior Civil Judge, 'A' Court,
Panaji.

SCS No. 52/2013/A

Final Submission

10/4/36

BEFORE THE HON'BLE SOLE ARBITRATOR

SR. ADV. STEVEN N. P. SARDESAI

AT PANAJI - GOA

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MR. VIKRAM SHAI

—Claimant

Verus

MR. RIVATREDADE & ORS.

—Respondents

REPLY TO APPLICATION UNDER
SECTION 16 OF THE ARBITRATION AND
CONCILIATION ACT, 1996 FILED BY THE
RESPONDENT NO.1

MAY IT PLEASE THIS HON'BLE TRIBUNAL

The Claimant above named most humbly begs to state and submit and
under